APPLICANT TRACKING SYSTEM SUBSCRIPTION AGREEMENT

Recruitment & Applicant Tracking System

Agreement Date:	January 01, 2025
Contract ID:	GH-ATS-2025-00090
Vendor:	Greenhouse Software, Inc. | 110 5th Avenue, 3rd Floor, New York, NY 10011
Customer:	Acme Corporation | 1600 Technology Drive, Halifax, NS B3J 1N9
Effective Date:	January 01, 2025
Renewal Date:	November 30, 2025
Contract Term:	11 months (January 1, 2025 – November 30, 2025)
Auto-Renewal:	No – manual renewal required
Notice Period:	45 days written notice required
Contract Value:	$5,500.00 USD / year
Pricing Escalation:	Fixed annual fee; priced per employee headcount band

1. Scope of Services

Greenhouse Software, Inc. ("Vendor") agrees to provide Acme Corporation ("Customer") with access to the following services and licensed products for the HR department under this Agreement:

- Greenhouse ATS — unlimited job postings and candidates
- Structured interview kits and scorecards
- LinkedIn and Indeed integrations
- Rippling HRIS integration for onboarding
- Offer management and e-signature
- EEOC/OFCCP compliance reporting

2. Fees & Payment Terms

The total annual contract value is $5,500.00 USD, invoiced annually in advance on the Effective Date of each contract year. Payment is due within 30 days of invoice date. Late payments accrue interest at 1.5% per month. All fees are exclusive of applicable taxes.

Pricing escalation terms: Fixed annual fee; priced per employee headcount band.

3. Renewal & Cancellation

This Agreement does NOT auto-renew. Customer must provide written notice of intent to renew at least 45 days before the Renewal Date (November 30, 2025) to receive pricing continuity. Renewal is subject to Vendor availability and mutual agreement on pricing. If no renewal notice is received, this Agreement will expire at the end of the current term.

4. Service Level Agreement (SLA)

- 99.9% platform uptime
- Standard support (M–F, 9 AM–6 PM ET)
- P1: 2-hour response, 8-hour resolution
- Dedicated Customer Success Manager

5. Data Security & Privacy

Vendor will maintain SOC 2 Type II and ISO 27001 certifications throughout the term. Customer data is encrypted in transit (TLS 1.2+) and at rest (AES-256). Vendor will notify Customer within 72 hours of any confirmed data breach affecting Customer data. Data handling complies with applicable Canadian privacy legislation (PIPEDA / provincial equivalents).

6. Key Terms & Conditions

- Intellectual Property: All Vendor software, documentation, and derivatives remain the exclusive property of Vendor.
- Confidentiality: Both parties agree to maintain strict confidentiality of proprietary business information for 3 years beyond termination.
- Limitation of Liability: Vendor's aggregate liability shall not exceed the total fees paid in the 12 months preceding the claim.
- Governing Law: This Agreement is governed by the laws of the State of New York, USA.
- Dispute Resolution: Disputes shall first be escalated to executive sponsors; unresolved disputes proceed to binding arbitration.
- Force Majeure: Neither party is liable for delays caused by events beyond reasonable control.

- Assignment: Customer may not assign this Agreement without prior written consent of Vendor.

7. Signatures

By signing below, both parties agree to be bound by the terms and conditions of this Applicant Tracking System Subscription Agreement as of the Effective Date stated above.

FOR GREENHOUSE SOFTWARE, INC.

Amanda Torres
Mid-Market Account Executive
Greenhouse Software, Inc.
January 01, 2025

FOR ACME CORPORATION

Marcus Reid
Chief Financial Officer
Acme Corporation
January 01, 2025